

ARE THE LEFT PARTIES RIGHT?

The Left wanted the Centre to ensure that nine points it had raised were taken care of in the 123 accord. Did it?

LEFT OBJECTIONS GOVERNMENT ACTION

Whether the deal will give India "full" civilian nuclear technology as promised in the pact

India has as "full" access to civilian nuke technology as permissible under US policy. Sensitive nuclear enrichment and heavy-water technology which the US doesn't even sell to its allies is to be got through a future amendment.

India cannot accept any kind of restrictions on its foreign policy.

Unlike the agreement that China signed with the US, cessation or suspension can only be on the basis of material violations. So no extraneous pressure on foreign policy can be brought in.

Signing of IAEA safeguards in perpetuity should take place after the US Congress okays 123 Agreement.

While IAEA safeguards would be negotiated, they would be signed only after the Nuclear Suppliers Group backs India and the US Congress approves the 123 Agreement.

Guarantees on fuel as agreed including from NSG members.

US has assured strategic reserves of fuel till reactors' lifetime and has agreed to get the NSG members on board too.

India will work for an FMCT and for nuclear disarmament.

The Indo-US agreement doesn't in anyway infringe this right.

No provision for US inspectors, only for IAEA inspectors.

Only IAEA inspectors permitted under the agreement.

An India-specific protocol as per IAEA.

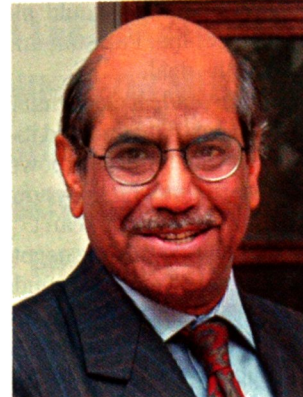
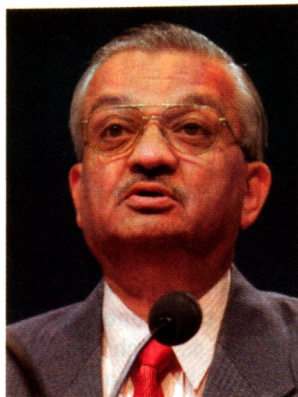
Special protocol for India is being negotiated with IAEA.

References to Iran.

No linkage with Iran in the 123 Agreement.

Reference to Proliferation Security Initiative.

No mention of Proliferation Security Initiative issue in 123 Agreement.



THE NEGOTIATORS: Kakodkar and Saran have still plenty of work to do for the deal to go through

with a worse deal," Mansingh warns.

Karat's order to the Government not to initiate negotiations with IAEA was not just baffling but it brazenly challenged the executive's constitutional authority to conduct foreign relations. It wasn't logical because according to the sequencing of the deal, the IAEA safeguards would kick in only after the US Congress gives its approval to the 123 Agreement. So there was no need for the Left to insist that the Indian officials not engage in a dialogue with IAEA for safeguards in the interim period. Also, as Krepon points out, "The US Congress will want to wait till the dust settles down before pushing for a vote on the subject. There would be no great impulse for them to move on it in a hurry."

While a pause for a month or so wouldn't impact the deal, anything more than that could result in serious slippages in schedule, jeopardising its passage. "It's not going to get easier at either the IAEA or the NSG," says Krepon. The IAEA Board of Governors would have to work out an India-specific safeguards agreement that could take anything from a few weeks to months. M.R. Srinivasan, former Atomic Energy Commission (AEC) chairman, points out that India already has facility specific safeguards for six of its plants. What India is working towards is having similar safeguards extended to the new group of reactors that were being put into the civilian category. AEC chairman Anil Kakodkar is expected to do just that by September.

Also, with NSG scheduled to meet only in the spring of next year, the US would have to persuade them to have a special session before that. While major powers like the US, Russia, Japan, Germany and Britain are supportive of the deal, resistance is expected from China, New Zealand and a few Scandinavian countries. The prime minister's special envoy Shyam Saran is constantly on tour to persuade all the 45-members to vote in India's favour.

So the way out of the mess for the Government is to offer both an extensive debate inside Parliament and a nation-

If the deal doesn't go through during the Bush presidency that ends in 2008, it is as good as dead.